

Court No. - 21

Case :- WRIT - C No. - 62426 of 2012

Petitioner :- Rakesh Kumar

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Subhash Gosain

Respondent Counsel :- C.S.C., Amrit Lal Yadav

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Het Singh Yadav, J.

It is submitted by Shri Subhash Gosain, learned counsel for the petitioner that a Revised Provisional Assessment dated 18.10.2012 was made in respect of the petitioner after deposit of Compounding Fee by the petitioner.

Pursuant to the said Revised Provisional Assessment, the petitioner filed Objections dated 1.11.2012 (Annexure 14 to the Writ Petition).

However, without deciding the said Objections, the respondent no.5 has issued a Letter dated 9.11.2012 (Annexure 16 to the Writ Petition) to the responding no.7, asking the respondent no.7 to recover the remaining amount of Rs. 3,95,241/-, which is mentioned in the aforesaid Revised Provisional Assessment.

It is submitted that the proceedings against the petitioner for recovering the amount as mentioned in the Revised Provisional Assessment being taken against the petitioner, are in violation of the provisions of the U.P. Electricity Supply Code, 2005.

In view of the submissions made by Shri Subhash Gosain, learned counsel for the petitioner, Shri A.L. Yadav, learned counsel for the respondent nos. 2 to 5 is granted time till 14th December, 2012 for obtaining instructions and filing Counter Affidavit.

Rejoinder Affidavit, if any, may be filed by the next date fixed in the matter.

List this case on 20th December, 2012.

The case will be listed amongst the cases listed at the top of the cause-list of the said date.

Order Date :- 3.12.2012

Ajeet...

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Respondent :- State Of U.P. Thru Secy. And Others

Counsel for Petitioner :- Subhash Gosain

Counsel for Respondent :- C.S.C.,Amrit Lal Yadav

Hon'ble Rakesh Tiwari,J.

Hon'ble Shashi Kant,J.

1. Matter is taken up in the revised list. None appears on behalf of the petitioner to argue the case. Power filed by Sri Shrawan Kumar Tripathi on behalf of the respondent is taken on record.

2.The writ petition is therefore dismissed for non prosecution. Interim order, if any, stands discharged.

Order Date :- 4.2.2016

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